BOND MEASURE C
BARSTOW COMMUNITY COLLEGE DISTRICT

IMPARTIAL ANALYSIS OF BOND MEASURE C

This Impartial Analysis of Bond Measure C has been prepared by County Counsel pursuant to Section 9500 of the California Elections Code.

This Measure was placed on the ballot by a resolution adopted by the Board of Trustees of the Barstow Community College District (District). A "yes" vote by at least fifty-five percent of the voters voting on this Measure will authorize the District to issue bonds in the amount of $37,000,000 to be used solely for the purposes set forth in this ballot Measure. A "no" vote means that the District will not be authorized to issue and sell the $37,000,000 in bonds set forth in the Measure.

The District's Resolution was adopted pursuant to California Education Code sections 15100 et seq., 15264, et seq. and 5322; Government Code section 53506; and Articles XIIIA and XVI of the California Constitution. The bond proceeds may only be used for specific projects listed in the Measure. The full text of the Measure contains a "Bond Project List" that lists the specific projects the District proposes to finance with proceeds from the sale of the bonds authorized by this ballot Measure and the bond proceeds may only be used for those specific projects. These projects include: construction and renovation of educational facilities to support veterans transitioning to civilian careers; construction, renovation, and modernization of instructional buildings, classrooms, labs and other student facilities including a university center, child care facilities and facilities for education in skilled trades and high-demand careers; repair, replacement or upgrading of campus-wide communications systems, hardware, and other data center equipment, security and safety systems, deteriorating roofing, heating, ventilation, air conditioning systems, electrical systems, plumbing, sewer, gas systems, storm drains and valves, hardscaping, parking areas and shade structures, roofs, flooring, windows, doors, lighting, interior and exterior finishes, paint and building systems; improvement of fire safety; making earthquake safety seismic upgrades; and other repair, renovation and construction projects needed to comply with building codes and the Americans with Disabilities Act. Some of the projects listed in the Measure may assume the receipt of matching State funds which may or may not be approved by the State Legislature.

The District will conduct financial and performance audits annually and all bond expenditures will be monitored by an independent Citizens' Oversight Committee to ensure that the bond proceeds are spent as promised and specified as required by Education Code section 15278 et seq. in order to ensure bond revenues are used for proper purposes and that no funds are used for any teacher or administrative salaries or other operating expenses. No District employees or vendors will be allowed to serve on the Citizens' Oversight Committee.

The estimated tax rate to repay these bonds is $25 per $100,000 assessed value, with the District estimating that the tax will raise a total of $2,500,000 in additional revenue per year. The bonded debt will be a general obligation of the District and will be financed by taxes levied annually on taxable property located within the District.

LAURA FEINGOLD
County Counsel
s/ JOLENA E. GRIDER
Deputy County Counsel

ARGUMENT IN FAVOR OF BOND MEASURE C

This Argument in Favor of Bond Measure C was submitted pursuant to Section 9501 of the California Elections Code. It is the opinion of the author(s), and has been printed exactly as submitted.

VOTE YES on Measure C to protect access to an affordable, high-quality education – strengthening Barstow Community College (BCCD) for future generations.

Every year, over **5,300 students, veterans, active-duty service members, and working adults** rely on Barstow Community College for a **high-quality education close to home**. As a key pipeline for workforce training, the College prepares students/veterans for in-demand careers and provides an **affordable pathway** to transfer to four-year colleges/universities.

Here's the problem: BCCD facilities are aging and need attention. After more than **60 years of continuous use**, many campus buildings and infrastructure systems require repairs to deteriorating gas/electrical lines and leaky roofs; upgrade aging air conditioning/heating systems; and other needed repairs so students can learn in safe, healthy classrooms. **Measure C will help.**

No other funding exists to fully address these needs.

ARGUMENT IN FAVOR – Continued on next page

Measure C will:

- **Prepare** students and veterans for skilled trades, high demand jobs/careers
- **Maintain** local affordable higher education
- **Repair/Update** deteriorating gas, electrical lines, air conditioning, and heating systems
- **Improve** access to skills training, career counseling, and job placement for veterans/active-duty service members
- **Upgrade** facilities supporting career training in technology, engineering, nursing, and other in-demand fields

Taxpayer protections are REQUIRED: Independent Citizens' Oversight, annual financial audits, public spending and disclosure. **ALL funds STAY LOCAL to benefit Barstow Community College and cannot be taken by the County/State government.**

Consider the benefits to OUR community! Measure C will improve local education, and provide opportunities to partner with local employers such as Barstow Community Hospital, BNSF, and local businesses to ensure it is offering programs that train local people for good-paying jobs.

A stronger Barstow Community College means a stronger local workforce, more educational opportunities, and a stronger High Desert economy.

Join students, veterans, educators, local employers, and community leaders in **VOTING YES on Measure C.**

s/ Beverly Lowry, Former Bd. Director, Mojave Water Agency & Advocate for High Desert Communities
s/ Fernando Baca, Local Business Owner & 46-Year Resident
s/ Julie Hackbarth-McIntyre, BCCD Board President, Former Mayor of Barstow
s/ Juan P. Rivera, U.S. Marine Corps Veteran, Community Leader
s/ Dale T. Jensen, Retired English Professor

TAX RATE STATEMENT FOR BOND MEASURE C

An election will be held in the Barstow Community College District (the "District") on November 3, 2026, to authorize the sale of up to $37,000,000 in general obligation bonds. The following information is submitted in compliance with Sections 9400-9404 of the Elections Code of the State of California. Such information is based upon the best estimates and projections presently available from official sources, upon experience within the District, and other demonstrable factors.

Based upon the foregoing and projections of the District's assessed valuation, the following information is provided:

1. The best estimate of the average annual tax rate that would be required to fund this bond issue over the entire duration of the bond debt service, based on estimated assessed valuations available at the time of filing of this statement, is $25 per $100,000 of assessed valuation. It is currently expected that the tax will be collected until fiscal year 2056-2057.

2. The best estimate of the highest tax rate that would be required to fund this bond issue, based on estimated assessed valuations available at the time of filing this statement, is $25 per $100,000 of assessed valuation. This rate is projected to apply in each fiscal year that bonds are outstanding.

3. The best estimate of total debt service, including principal and interest, that would be required to be repaid if all the bonds are issued and sold will be approximately $73,723,057.

These estimates are based on projections derived from information obtained from official sources, and are based on the assessed value (not market value) of taxable property on the County's official tax rolls. In addition, taxpayers eligible for a property tax exemption, such as the homeowner's exemption, will be taxed at a lower effective tax rate than described above. Property owners should consult their own property tax bills and tax advisors to determine their property's assessed value and any applicable tax exemptions. The attention of all voters is directed to the fact that the foregoing information is based upon projections and estimates only, which amounts are not maximum amounts and durations and are not binding upon the District. The actual debt service, tax rates and the years in which they will apply may vary depending on the timing of bond sales, the par amount of bonds sold at each sale and actual increases in assessed valuations. The timing of the bond sales and the amount of bonds sold at any given time will be determined by the District based on the need for project funds and other considerations. Actual assessed valuations will depend upon the amount and value of taxable property within the District as determined by the County Assessor in the annual assessment and the equalization process.

s/ Eva Bagg
Superintendent-President
Barstow Community College District

FULL TEXT FOR BOND MEASURE C

BOND AUTHORIZATION

By approval of this measure by at least 55% of the registered voters voting on the measure, the Barstow Community College District (the "District") will be authorized to issue and sell bonds of up to $37,000,000 in aggregate principal amount, at interest rates not to exceed legal limits and to provide financing for the specific types of community college facilities projects listed in the Bond Project List included below, subject to all the accountability requirements specified below.

ACCOUNTABILITY REQUIREMENTS

The provisions in this section are specifically included in this measure in order that the voters and taxpayers in the District may be assured that their money will be spent wisely. Expenditures to address specific facilities needs of the District will be in compliance with the requirements of Article XIIIA, Section 1(b)(3), of the State Constitution and the Strict Accountability in Local School Construction Bonds Act of 2000 (codified at Education Code Sections 15264 and following.)

Bonds authorized by this measure may be issued under the provisions of the California Education Code (starting at Section 15100), under the provisions of the California Government Code (starting at Section 53506), or under any other provision of law authorizing the issuance of general obligation bonds by community college districts. The bonds may be issued in series by the District, from time to time, and each series of bonds shall mature within the legal limitations set forth in the applicable law under which the bonds are issued.

Evaluation of Needs. The Board of Trustees of the District (the "Board") has identified detailed facilities needs of the District, and has determined which projects to finance from a local bond. The Board hereby certifies that it has evaluated safety, class size reduction, enrollment growth, and information technology needs in developing the Bond Project List described below.

Independent Citizens' Oversight Committee. Following approval of this measure, the Board will establish an independent citizens' oversight committee, under Education Code Sections 15278 and following, to ensure bond proceeds are expended only on the types of facilities projects listed below. The committee will be established within 60 days of the date when the results of the election appear in the minutes of the Board.

Performance Audits. The Board will conduct annual, independent performance audits to ensure that the bond proceeds have been expended only on the facilities projects listed below.

Financial Audits. The Board will conduct annual, independent financial audits of the bond proceeds until all of those proceeds have been spent for the facilities projects listed below.

Government Code Accountability Requirements. As required by Section 53410 of the Government Code, (1) the specific purpose of the bonds is set forth in this Full Text of the Measure, (2) the proceeds from the sale of the bonds will be used only for the purposes specified in this measure, and not for any other purpose, (3) the proceeds of the bonds, when and if issued, will be deposited into a building fund to be held by the San Bernardino County Treasurer, as required by the Education Code, and (4) the Superintendent-President of the District shall cause an annual report to be filed with the Board of the District, which report shall contain pertinent information regarding the amount of funds collected and expended, as well as the status of the projects listed in this measure, as required by Sections 53410 and 53411 of the Government Code.

Bonding Capacity. Issuance of each series of bonds authorized by this measure is required to conform with all applicable legal requirements. This includes issuance within applicable bonding capacity limitations, which may include a waiver of bonding capacity granted by the State Board of Trustees, if sought and granted.

NO INSTRUCTOR OR ADMINISTRATOR SALARIES

Proceeds from the sale of bonds authorized by this measure shall be used only for the purposes specified in Article XIII A, Section 1(b)(3), specifically the construction, reconstruction, rehabilitation, or replacement of school facilities, including the furnishing and equipping of school facilities, and the acquisition or lease of school facilities, and not for any other purpose, including instructor and administrator salaries and other school operating expenses, in accordance with Opinion 04-110 of the Attorney General of the State of California.

STATE MATCHING FUNDS

The following statement is included in this measure pursuant to Education Code Section 15122.5: Approval of this measure does not guarantee that the proposed projects that are the subject of bonds under this measure will be funded

FULL TEXT – Continued on next page

beyond the local revenues generated by this measure. The District's proposal for the projects described below may assume the receipt of matching state funds, which, if available, could be subject to appropriation by the Legislature or approval of a statewide bond measure.

INFORMATION ABOUT ESTIMATES AND PROJECTIONS

Voters are informed that any estimates or projections in the bond measure or ballot materials, including relating to estimated tax rates, the duration of issued bonds and related tax levies and collections are provided as informational only. Such amounts are estimates and are not maximum amounts or limitations on the terms of the bonds, the tax rate or duration of the tax supporting repayment of issued bonds. Such estimates depend on numerous variables which are subject to variation and change over the term of the District's overall facilities and bond financing plan, including but not limited to the amount of bonds issued and outstanding at any one time, the interest rates applicable to issued bonds, market conditions at the time of sale of the bonds, when bonds mature, timing of project needs and changes in assessed valuations in the District. As such, while such estimates and approximations are provided based on information currently available to the District and its current expectations, such estimates and approximations are not limitations and are not binding upon the District. In addition, the abbreviated and condensed statement of the bond measure presented to voters which is subject to a word count limitation imposed by State law does not limit the scope and complete meaning of the measure provided in this Full Text of Bond Measure and related ballot materials.

BOND PROJECT LIST

Scope of Projects. Bond proceeds will be expended on the modernization, renovation, expansion, acquisition, construction/reconstruction, rehabilitation, and/or replacement of facilities of the District, including the furnishing and equipping of facilities, at all existing sites of the District and all sites that may be acquired by the District in the future.

Project List. The items presented on the following list provide the specific types of projects authorized to be financed with voter-approved bond proceeds. Specific examples included on this list are not intended to limit the types of projects described and authorized by this measure. The following types of projects are authorized by this measure:

- Construct and renovate educational facilities to support veterans transitioning to civilian careers
- Construct, renovate and modernize instructional buildings, classrooms, labs, and other student services facilities, including [a university center and] child-care facilities
- Construct, renovate and modernize facilities for education in skilled trades and high-demand careers
- Replace or upgrade campus-wide communications systems, hardware, and other data center equipment, storage area network, software, computer technology and network connections and infrastructure, data backup internet and wi-fi systems
- Replace or upgrade security and safety systems including security cameras, burglar alarms, handrails, communication systems, outdoor lighting, fencing, gates and classroom door locks and access control
- Improve fire safety by adding or improving alarm, sprinkler, communication and protection systems
- Repair, upgrade or replace deteriorating roofing, heating, ventilation, air-conditioning systems, electrical systems, plumbing, sewer. And gas and systems, storm drains and valves, and other utility systems
- Replace and repair hardscaping, including shade structures, parking areas, asphalt and concrete
- Replace, repair or upgrade roofs, flooring, windows, window coverings, doors, lighting, interior and exterior finishes, paint and building systems
- Improve, install, replace or upgrade energy management systems, utility isolation systems, solar and other systems to improve energy efficiency and sustainability
- Make earthquake-safety seismic upgrades
- Construct or improve athletic facilities improvements, including, but not limited to, fields, tracks, courts, and pools, locker rooms, lockers, gymnasia, and athletic equipment
- Upgrade or replace offices and administrative areas and buildings, staff work and kitchen facilities and equipment
- Make other improvements required to comply with existing building codes, including the Field Act, and handicapped access requirements of the Americans with Disabilities Act (ADA)

FULL TEXT – Continued on next page

Incidental Expenses. Each of the bond projects described in this Bond Project List include the costs of furnishing and equipping such facilities, and all costs which are incidental but directly related to the types of projects described above. Examples of incidental costs include, but are not limited to: costs of design, engineering, architect and other professional services, facilities assessments, inspections, site preparation, utilities, landscaping, interior and exterior painting, bond project construction management, administration and other planning and permitting, legal, accounting and similar costs; independent annual financial and performance audits; a customary construction contingency; abatement, demolition and disposal of existing structures; the costs of interim housing and storage during construction including relocation and construction costs incurred relating to interim facilities; the preparation or restoration of construction, renovation or remodeling; rental or construction of storage facilities and other space on an interim basis for materials and other equipment and furnishings displaced during construction; costs of relocating facilities and equipment as needed in connection with the projects; the acquisition or improvement of interim housing, including portable classrooms and other modular facilities; federal and state-mandated safety upgrades; addressing unforeseen conditions revealed by construction/modernization and other necessary improvements required to comply with existing building codes, including the Field Act; access requirements of the Americans with Disabilities Act; and costs of the election; bond issuance costs; and project administration during the duration of such projects, as permitted by law.

Furnishing and Equipping. Each project is assumed to include its share of furniture, fixtures, equipment, architectural, engineering, and similar planning costs, program/project management, staff training expenses and a customary contingency for unforeseen design and construction costs. In addition to the listed projects stated above, the list also includes the acquisition of a variety of instructional, maintenance and operational equipment, including the reduction or retirement of outstanding lease obligations and interim funding incurred to advance fund projects from the list; installation of signage and fencing; payment of the costs of preparation of all facility planning, facility studies, assessment reviews, facility master plan preparation and updates, environmental studies (including environmental investigation, remediation and monitoring), design and construction documentation, and temporary housing of dislocated District activities caused by construction projects. The upgrading of technology infrastructure includes, but is not limited to, computers and computer stations, racks, projectors, portable interface devices, servers, switches, routers, modules, sound projection systems, printers, digital white boards, document projectors, audio-visual equipment, telephone system, call manager and network security/firewall, wireless technology systems and other miscellaneous equipment.

Alterations to Scope; Acquisition of Real Property. The scope and nature of any of the specific projects described above may be altered by the District as required by conditions that may arise during the course of design and construction. In the event that a modernization or renovation project is more economical for or otherwise determined by the Board to be in the best interests of the District to be undertaken as new construction, this bond measure authorizes said new construction including land acquisition, relocation and construction at a new or alternative site, and/or demolition and reconstruction and/or repurposing on the original site, including an expanded site, and all costs relating thereto. For any project involving rehabilitation or renovation of a building or the major portion of a building, the District shall be authorized to proceed with new construction instead, if the Board determines that replacement and new construction is more economically practical than rehabilitation and renovation, considering the building's age, condition, expected remaining life, and other relevant factors.

In addition, this measure authorizes the acquisition of real property, including necessary rights of ways or other real property interests required to expand District facilities, to provide access to other District facilities, or to provide additional related facilities.

Interim Financing Included; Joint Use Projects Authorized. Authorized projects include paying and/or prepaying interim or previously obtained financing for the types of projects included on the Bond Project List, such as bond anticipation notes, and includes prepayment of lease payments to acquire title to facilities and/or equipment previously financed. Projects may also be undertaken on a joint use basis with other public entities.

Bond Project List Not in Order of Priority; Board Determines Prioritization. Approval of this bond measure does not guarantee that the proposed projects will be funded beyond the local revenues generated by the measure. The District's capital needs currently exceed the amount of bonds the voters are being asked to authorize. The order in which particular projects are listed is not intended to suggest priority for funding or completion, and itemization of projects in the list above does not guarantee that all such projects will be undertaken. Project priorities will be determined by the Board. The ability of the District to undertake and complete the listed projects is subject to numerous variables including the adequacy and availability of sufficient funding sources. The District is unable to anticipate all unforeseen circumstances which may prevent some of the projects listed above from being undertaken or completed.

FULL TEXT – Continued on next page

Interpretation. The terms of this bond measure and the words used in the Bond Project List shall be interpreted broadly to effect the purpose of providing broad and clear authority for the officers and employees of the District to provide for the facilities projects the District proposes to finance with the proceeds of the sale of bonds authorized by this proposition within the authority provided by law, including Article XIIIA, Section 1(b)(3) of the California Constitution, Education Code Section 15000 *et seq.* and the Strict Accountability in Local School Construction Bonds Act of 2000. Words used in the Bond Project List such as repair, improve, upgrade, expand, modernize, renovate, and reconfigure are used to describe projects in plain English but are not intended to expand the nature of such projects beyond what is authorized by law. As such, in accordance with legal requirements, the Bond Project List does not authorize, and shall not be interpreted to authorize, expending proceeds of the sale of bonds authorized by this proposition for current maintenance, operation or repairs.

Severability. The Board hereby declares, and the voters by approving this Bond Measure concur, that every section and part of this bond proposition has independent value, and the Board and the voters would have adopted each provision hereof regardless of every other provision hereof. Upon approval of this measure by the voters, should any part be found by a court of competent jurisdiction to be invalid for any reason, all remaining parts hereof shall remain in full force and effect to the fullest extent allowed by law, and to this end the provisions of this bond measure are severable.